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IN THE CIRCUIT COURT OF THE 4TH
JUDICIAL CIRCUIT, IN AND FOR
DUVAL COUNTY, FLORIDA

CASE NO.: 16-2018-CA-002188

CREIGHTON BAYER,

Plaintiff,

vs.

USAA CASUALTY INSURANCE
COMPANY,

Defendant.

AMENDED COMPLAINT FOR DAMAGES

The Plaintiff, CREIGHTON BAYER, by and through his undersigned attorney, sues the Defendant, USAA CASUALTY INSURANCE COMPANY, and alleges as follows:

1. That this is an action for damages that exceed Fifteen Thousand (\$15,000.00) Dollars.
2. That at all times material hereto, the Plaintiff, CREIGHTON BAYER (hereinafter referred to as "BAYER"), was a resident of Palm Beach County, Florida and is otherwise sui juris.
3. That at all times material hereto, the Defendant, USAA CASUALTY INSURANCE COMPANY (hereinafter referred to as "USAA"), was and still is a foreign corporation authorized to do and doing business in Duval County, Florida, as an insurance company.
4. That at all times material hereto, Craig Bayer, purchased a policy of motor vehicle insurance in Duval County, Florida, from Defendant, USAA. USAA CASUALTY INSURANCE COMPANY issued and delivered to Plaintiff a written motor vehicle insurance

policy, policy number 015602786C71024, which would inure to Plaintiff's benefit. Plaintiff, BAYER, does not have in his possession a copy of said policy of insurance, and therefore, said insurance policy is not attached hereto as an exhibit. Plaintiff further believes that Defendant, USAA, has a copy of the subject policy of insurance in its possession.

5. That on or about 7/6/2017, BAYER operated a motor vehicle owned by Craig Bayer and being driven with his consent in Duval County Jacksonville, Florida.

6. That at the aforesaid time and place, a vehicle being operated by the underinsured driver, Kylie Kerins negligently operated and/or maintained his motor vehicle so that it collided with the rear of the vehicle which Plaintiff, BAYER, was operating.

7. That as a direct and proximate result of Kylie Kerins's aforesaid negligence, Plaintiff, BAYER, suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money, and aggravation of a previously existing condition. The losses are either permanent or continuing and Plaintiff will suffer the losses in the future.

8. That at all times material hereto, Kylie Kerins, had purchased motor vehicle insurance issued by Progressive Insurance Company policy number 21128290-1 but failed to purchase sufficient bodily injury insurance coverage. Thus, Kylie Kerins is underinsured to fully compensate Plaintiff, BAYER, for his aforesaid injuries and damages.

9. That the aforesaid policy of insurance issued by Defendant, USAA, to Craig Bayer, contained underinsured/uninsured motorist coverage which provided Plaintiff, BAYER, underinsured/uninsured motorist benefits with limits of \$300,000.00 coverage.

10. That Plaintiff, BAYER, demanded USAA to tender the underinsured/uninsured motorist benefits and USAA refused to pay the insurance benefits pursuant to the terms of the aforesaid insurance policy.

11. That as a direct and proximate result of Kylie Kerins being underinsured for Plaintiff, BAYER's, injuries and damages and USAA's breach of the aforesaid insurance policy; Plaintiff, BAYER, is entitled to the benefits of underinsured/uninsured motorist coverage set forth in the subject policy of insurance for Plaintiff's aforesaid injuries and/or damages sustained in the aforescribed motor vehicle accident.

12. All conditions precedent to the institution of this action have been performed by Plaintiff, BAYER, or said conditions have been waived by Defendant, USAA.

WHEREFORE, Plaintiff, CREIGHTON BAYER, demands judgment against the Defendant, USAA CASUALTY INSURANCE COMPANY, for compensatory damages in excess of Fifteen Thousand Dollars (\$15,000.00), in addition to taxable costs. Plaintiff further demands trial by jury for all issues triable as of right by jury.

DATED this 24th day of May, 2018.

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By: /s/ Adam E. Miller

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